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22 May 2026

The Legal Department

[Airline]

legal@airline.com

BY EMAIL

RE: LETTER OF CLAIM — DANIEL HARTLEY — FLIGHT HC 1184 (LTN-BCN) — 14 MARCH 2026

Dear Sirs,

We act on behalf of Mr Daniel Hartley of 42 Wentworth Gardens, London N1 7PR ("our client"). We write in accordance with the Pre-Action Protocol for the Resolution of Package Travel Claims and in connection with flight HC 1184 operated by your airline on 14 March 2026.

BACKGROUND

Our client was a ticketed passenger on flight HC 1184, scheduled to depart London Luton Airport (LTN) at 07:25 and arrive at Barcelona El Prat Airport (BCN) at 10:50 on 14 March 2026. Our client held booking reference HCB-2026-448821.

At approximately 09:55 UTC, whilst the aircraft was approximately 40 nautical miles north-east of Barcelona, the crew diverted the flight to Valencia Airport (VLC). Our client arrived at Barcelona by coach transfer at approximately 18:45, representing a total delay against scheduled arrival of approximately 7 hours and 55 minutes.

HEADS OF CLAIM

1. EC Regulation 261/2004 — Compensation

Pursuant to Article 7(1)(a) of EC Regulation 261/2004 (as retained in UK law by the Air Passenger Rights and Air Travel Organisers' Licensing (Amendment) (EU Exit) Regulations 2019) ("UK261"), our client is entitled to compensation of £350 in respect of a delay of 3 hours or more on arrival at the final destination on a route of 1,500km or less. The LTN-BCN sector is 1,142km.

2. Article 9 — Right to Care

Our client was not provided with adequate refreshments or communications during the extended delay at Valencia Airport. We claim reasonable expenses of £141.80 incurred in connection with meals, refreshments and telephone communications.

3. Consequential Loss — Montreal Convention 1999

Our client was travelling to Barcelona to perform consultancy services pursuant to a contract with Meridian Technologies SL. As a direct result of the diversion and delay, our client was unable to perform his contracted obligations on 14 March 2026. Our client has received a claim from Meridian Technologies SL in the sum of €45,000 (£38,250 at the prevailing exchange rate) representing loss arising from non-performance.

Pursuant to Article 19 of the Montreal Convention 1999 (as incorporated into UK law), your airline is liable for damage occasioned by delay unless it took all measures reasonably necessary to avoid the damage or it was impossible to take such measures. We reserve all rights in respect of this head of claim pending your response.

SUMMARY OF CLAIM

Head of claim	Amount
EC261/UK261 compensation (Art 7)	£350.00
Article 9 — meals and communications	£141.80
Consequential loss (Montreal Convention)	£38,250.00
TOTAL CLAIMED	£38,741.80

RESPONSE REQUESTED

We invite your response within 21 days of the date of this letter in accordance with the Pre-Action Protocol. Please confirm whether liability is admitted or denied in respect of each head of claim. In the event that extraordinary circumstances are relied upon as a defence to the Article 7 claim, please provide full particulars of the circumstances relied upon together with all supporting documentation.

In the absence of a satisfactory response within the period specified, our client reserves the right to issue proceedings without further notice.

Yours faithfully,

Pemberton & Associates